

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

WAN HAI LINES, LTD. AND WAN HAI LINES (USA) LTD. -
POSSIBLE VIOLATIONS OF 46 U.S.C. § 41102(C)

DOCKET NO. 21-16

Served: February 10, 2023

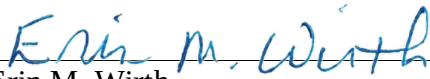
ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge.*

ORDER ON JOINT MOTION TO STAY AND LEAVE TO WITHDRAW AS COUNSEL

On February 9, 2023, the parties filed a joint motion requesting a stay of deadlines pending settlement (“Stay Motion”). The parties state that they have “reached an agreement in principle to settle this matter, and are actively working to prepare the necessary documentation.” Stay Motion at 1. The parties request that the deadline for the end of discovery be extended by two weeks, from February 10, 2023, to February 24, 2023, and that the subsequent deadlines be extended as well. Stay Motion at 1.

This is an expedited proceeding and the Commission has set a deadline of April 17, 2023, for issuing the initial decision. Although labeled as a motion to stay, this is really a motion to extend the deadlines in the remand scheduling order by two weeks. The requested two-week extension would result in the final brief, the remand reply brief, being filed on April 7, 2023. The requested extension permits briefing to conclude before the expiration of the Commission’s deadline. Moreover, a settlement of the proceeding would be a more efficient way to resolve the issues in dispute. Therefore, the two-week extension request is reasonable. It is hereby **ORDERED** that the joint motion be **GRANTED**. All deadlines in the scheduling order are extended by two weeks, however, this is the only extension that can be granted due to the expedited nature of this proceeding. If the parties settle this proceeding, they must submit a motion for approval of the settlement with a copy of the settlement agreement.

In addition, on January 17, 2023, Benjamin Trogon moved for permission to withdraw as counsel for the Bureau of Enforcement, Investigations, and Compliance (“BEIC”) due to his retirement. BEIC is represented by other counsel. It is hereby **ORDERED** that the motion to withdraw be **GRANTED**.


Erin M. Wirth
Chief Administrative Law Judge